

		resolved, and Defendant could not be relied on to fulfill its discovery obligations. (See Plaintiff's Statement filed May 29, 2026, as ROA 67). Plaintiff has identified several deficiencies in Defendant's supplemental responses. To the extent Plaintiff contends Defendant's supplemental responses are deficient, Plaintiff may move for an order compelling further responses. The deficiencies Plaintiff identifies do not warrant a drastic remedy such as issue sanctions, evidentiary sanctions, or terminating sanctions. (see <i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 991-992; <i>Caryl Richards, Inc. v. Superior Court</i>, 188 Cal.App.2d 300, 303.) Within 30 days of this ruling, Defendant American Honda Motor Co., Inc. shall pay monetary sanctions in the amount of \$1,875 to Plaintiff. Any further failure to comply with the Court's discovery orders could result in further monetary sanctions, issue sanctions, evidentiary sanctions, or even terminating sanctions. Plaintiff shall provide notice.
5.	Ratzlaff vs. Unique Outdoor Designs, LLC 20-01159991	1. Motion for Sanctions 2. Motion to Be Relieved as Counsel of Record Defendant In Intervention, Scottsdale Insurance Company's motion for terminating sanctions is DENIED. This Court takes the position that in most cases of purported spoliation, facts should be decided and appropriate inferences made by the trier of fact after a full hearing at trial, rather than imposing non-monetary sanctions on a pretrial motion. <i>New Albertsons, Inc. v. Superior Court</i> (2008) 168 Cal.App.4th 1403. Evidence Code section 413 permits the trier of fact to consider a party's willful suppression of evidence when determining what inferences to draw. Terminating sanctions are not statutorily mandated even in the face of willful discovery misconduct. <i>Higginson v. Kia Motors America</i> (2026) 118 Cal.App.5th 316. While denying the motion, it is without prejudice to Scottsdale presenting evidence and argument concerning the issue of destroyed cores to the trier of fact at trial. Scottsdale to give notice of this ruling.

		Mark M. Higuchi, Esq. / Brown & Charbonneau, LLP's motion to be relieved as counsel of record for defendant Unique Outdoor Designs, LLC is GRANTED. This order shall become effective upon the filing of the proof of service of the executed order. Higuchi to give notice of this ruling.
6.	Pantoja vs. Collins 23-01370879	1. Demurrer to Second Amended Complaint (x2) 2. Case Management Conference Defendant RTI Properties, Inc.'s demurrer to the ninth, tenth, eleventh, twelfth, thirteenth, fourteenth, and sixteenth causes of action is SUSTAINED in its entirety. Defendant Qualfax's demurrer to the sixteen cause of action is SUSTAINED. <u>The 9th, 10th 11th, 12th and 13th causes of action - cancellation of an instrument.</u> RTI isn't an actual party to any of the documents he seeks to cancel. Plaintiff has alleged RTI Properties is a party to the contract regarding the instruments sought to be cancelled; however, a review of the written contracts, which are attached as exhibits, shows that RTI is not the contracting party. Facts appearing in exhibits attached to a complaint will be accepted as true and given precedence if contrary to the allegations of the pleading. <i>Dodd v. Citizens Bank of Costa Mesa</i> (1990) 222 Cal.App.3d 1624. If allegations in a pleading conflict with incorporated documents, the court will treat the documents as controlling over the allegations of the complaint. <i>Executive Landscape Corp. v. San Vicente Country Villas IV Assn.</i> (1983) 145 Cal.App.3d 496. When the recitals in a written exhibit are contrary to the allegations of the complaint, they will be given precedence and the pleader's inconsistent allegations will be disregarded. <i>Hill v. City of Santa Barbara</i> (1961) 196 Cal.App.2d 580. "Under these circumstances the court will, in hearing on the demurrer, examine the exhibits and treat the pleader's conclusions as surplusage." <i>Alphonzo E. Bell Corp. v. Bell View Oil Syndicate</i> (1941) 46 Cal.App.2d 684.